

25VECV05502 25VECV05502

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Tentative Ruling

Bibicoff v. Ford Motor Company,

Case no. 25VECV05502

Hearing date September 3, 2026

Plaintiff

Bibicoff's Motions to Compel Further Discovery Responses

Plaintiff Bibicoff sues

defendants Ford Motor Company and Knight Sunrise Fontana LLC, alleging violations of the Song-Beverly Act. Plaintiff moves to compel further responses to RFPS, set one, and SROGs, set one, and for sanctions on both motions. Ford opposes.

Per

Code Civ. Proc. §2031.310(a) "the demanding party may move for an order compelling further response to the demand if the demanding party deems that . . . (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive..."

Per

plaintiff's 8/27/26 reply, the remaining issues were plaintiff's RFPs relating to "RAV Policies and Procedures for the years 2022 through 2025" and "Ford's Customer Relationship Center ("CRC") materials for those same years." Per a supplemental filing on 8/31/26, those documents were produced. See 8/31/26 Decl. Perez, paras. 5-6. The only remaining issue is sanctions.

Ford

only served full responses after plaintiff filed the motion to compel further, demonstrating necessity of the motion. Sanctions are mandatory. Code Civ. Proc. 2031.310. As Ford's counsel was responsive in serving responses, regardless of the alleged sufficiency, and in meet-and-confer efforts (see Decl. Leite, exh. C), sanctions are imposed against Ford only.

Plaintiff

requests a reasonable hourly rate of \$350/hour. Decl. Leite, para. 9. Plaintiff requests 2.6 hours for motion drafting, 2 hours for opposition/reply and 2 hours for hearing. Id. The court awards 2.6 hours for motion drafting, 2 hours for opposition review and reply drafting, and 1 hour for hearing, plus \$60 in filing fees. Id. at para. 10. The court awards \$2,020 against Ford only on the motion to compel further responses to RFPs, set one. GRANTED as to plaintiff's motion to compel further responses to RFPs, set one, regarding sanctions only.

Plaintiff

separately moves to compel further responses to SROGs, set one, nos. 10, 26, 47, 49-58. Plaintiff asserts Ford served objection-only responses and refused to serve supplemental responses despite meet-and-confer efforts. See Decl. Leite, para. 4-7, exhs. B-E. Plaintiff argues the SROGs seek information regarding training Ford provided from 2023 to present regarding evaluation of pre-litigation repurchase requests and the facts supporting the contention that the Subject Vehicle does not qualify for repurchase or replacement under Song-Beverly. Plaintiff argues this information is relevant.

Ford

stands on its objections, arguing the SROGs are overly broad and seek irrelevant information. Ford argues there is no basis to produce responses regarding pre-litigation repurchase request training policies, as they have no direct relation to the subject vehicle. Ford argues no. 47 in particular seeks privileged information not subject to production, information regarding the process and mechanisms by which Ford met its discovery obligations in this case.

Ford

produced information on its training policies, subject to a protective order, via the CRC documents above. There is no basis to compel further responses to nos. 10 and 26. Similarly, the SROGs seeking information regarding Ford's

contentions as to why the subject vehicle was not purchasable are sufficiently answered by Ford's earlier responses to discovery. See 8/24/26 Sep. Statement; see also 8/31/26 Decl. Perez, paras. 5-6.

SROGs

nos. 47, 49-58 improperly seek irrelevant discovery-on-discovery as to record retention technologies, policies and personnel. Plaintiff is not entitled to Ford's internal litigation processes, including the manner in which Ford conducts discovery. While plaintiff is entitled to broad information regarding general records and retention policies (see *Kwan v. Mercedes-Benz of North America* (1994) 23 Cal.App.4th 174, 186) plaintiff is not entitled to information such as individuals responsible for operation, maintenance, expansion and upkeep of internal databases.

Relevance

is a threshold issue for discovery. *National Steel Products Co. v. Sup. Ct.* (1985) 164 Cal.App.3d 476, 492-93. In a *Song Beverly* case, plaintiff's discovery must relate to claims he is required to prove, including: (1) purchase/lease of a new motor vehicle manufactured by Ford; (2) Ford provided a written warranty; (3) the vehicle had a defect was covered by the warranty that substantially impaired its use, value, or safety; (4) plaintiff delivered the vehicle to Ford or authorized repair facility; (5) Ford or authorized repair facility failed to repair the vehicle to match the written warranty after a reasonable number of opportunities to do so; and (6) Ford did not promptly replace or buy back the vehicle. See CACI 3201. Ford's internal records-keeping processes is not at issue; discovery is not relevant nor reasonably calculated to produce admissible evidence. There is no basis to compel further responses to SROGs nos. 47-49-58. DENIED. No sanctions in relation to plaintiff's motion to compel further responses to SROGs, set one.